

arguments that a caretaking relationship was formed because Decedent was given clothes and a warm room to occupy are too general. Any hospital will give a naked patient a hospital gown. A hospital cannot help but have its patients be indoors, too. The argument that SUTTER SOLANO assumed responsibility for Decedent's care because it monitored his vital signs is likewise unavailing because it attempts to impose a caretaking relationship on routine, universal emergency room activities. Further, Plaintiffs allege that SUTTER SOLANO did precisely the opposite of assuming responsibility for Decedent's needs where its staff marked him for referral to social services. (1AC at ¶ 25.) Even acknowledging the allegations of Decedent's altered mental state the fact remains that SUTTER SOLANO did not care for Decedent's basic needs in any but the most minimal and incidental ways for any but the most fleeting and insignificant time. Plaintiffs do not state a cause of action for dependent adult neglect on account of failure to state a caretaking or custodial relationship.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs do not offer a directed argument as to amendment, only requesting leave to amend without demonstration of what additional facts they could allege that would cure identified defects.

Conclusion. SUTTER SOLANO's demurrer to the fourth cause of action in the first amended complaint is sustained without leave to amend.

ELAINE SCIACCA and KK&G INC. vs. AHMED ALSHERIF
Case No. CU26-02679

Anti-SLAPP Motion

TENTATIVE RULING

On the Court's own motion, the hearing will be continued. The Parties are to address what consideration, if any, should be given to the pending writ before the Court of Appeal in selecting new hearing date.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING